**Annexure-5**

**To be executed on Non-Judicial Stamp Paper of appropriate value (as applicable in the relevant State where the claimant resides) and notarized / attested by a Gazetted Officer / Judicial Magistrate First Class (JMFC)**

# AFFIDAVIT-CUM-NO OBJECTION DECLARATION

**For Transmission of Securities / Mutual Fund Units upon demise of Sole Holder / All Holders who died without registering a Nominee**

To be furnished jointly or severally, as may be applicable, by the Claimant(s) and all Non-Claimant Legal Heir(s)

## ASSET TYPE – TICK AS APPLICABLE

Securities (Shares / Debentures / Bonds / Mutual Fund units etc.) held in:

☐ Physical mode / Statement of Account (SOA)

☐ Demat mode

## PART A – DEPONENT(S)

I/We _____, son(s)/daughter(s)/legal heir(s) of Late Mr. / Mrs._____, residing at_____, do hereby solemnly affirm and state on oath as under:

## PART B – DECLARATIONS

1. The above-mentioned deceased holder held the securities/units described in Part C in his/her name as the sole holder.
2. The deceased holder died on _____ without registering any nominee.
3. Basis of succession (applicable only for cases above threshold category):

   ☐ Succession Certificate ☐ Probate of Will ☐ Will

   ☐ Letter of Administration ☐ Legal Heirship Certificate ☐ Court Decree

   ☐ Law of Intestate Succession
4. A copy of the applicable document referred to above is enclosed herewith.
5. The persons named in Part D are the only legal heir(s)/legatee(s) of the deceased.
6. Where any legal heir named herein is a minor, such minor is represented by his/her natural / legal guardian.
7. The claimant(s) named in Part E have applied for transmission of the said securities/units in their favour.

8. I/We declare that, to the best of my/our knowledge and belief, there is no pending dispute, litigation or competing claim amongst the legal heir(s) and claimant(s) in relation to the aforesaid securities/units or the succession thereof.

9. I/We, being the non-claimant legal heir(s) named in Part D and do hereby voluntarily and unconditionally relinquish and renounce all rights, title, interest, and claim, present or future, in the said securities/units in favor of the claimant(s) and shall have no claim whatsoever thereto at any time hereafter.

10. I/We have no objection whatsoever to the transmission of the said securities/units in favor of the claimant(s) named herein, and consent to such transmission being effected by the Listed Company/Issuer/AMC/RTA/Depository Participant/Depository.

11. I/We declare that the statements made herein, and the documents enclosed herewith, are true and correct to the best of my/our knowledge and belief, and that nothing material has been concealed or misrepresented. I/We shall be solely responsible for resolving any issue, dispute, or claim that may arise should any statement or document furnished herein be found to be false, incorrect, or incomplete, and shall keep the Listed Company / Issuer / AMC / RTA / Depository Participant / Depository fully indemnified against any loss or liability arising therefrom.

## PART C – DETAILS OF SECURITIES / UNITS

| S. No. | Name of Company / Mutual Fund Scheme | Client ID / DP ID / Folio No. / Certificate No. | Distinctive No. (if applicable) | No. of Securities / Units Held |
|---|---|---|---|---|
| 1 | | | From:<br>To: | |
| 2 | | | From:<br>To: | |
| 3 | | | From:<br>To: | |
| 4 | | | From:<br>To: | |

## PART D – DETAILS OF LEGAL HEIRS (INCLUDING NON-CLAIMANTS)

| Name of Legal Heir(s) | Address & Contact Details | Age | Relationship with Deceased |
|---|---|---|---|
| | | | |

| Name of Legal Heir(s) | Address & Contact Details | Age | Relationship with Deceased |
|---|---|---|---|
| | | | |
| | | | |
| | | | |

## PART E – DETAILS OF CLAIMANT(S)

| Name of Claimant | Address & Contact Details | Age | Relationship with Deceased |
|---|---|---|---|
| | | | |
| | | | |
| | | | |

## PART F – VERIFICATION

I/We solemnly affirm and verify that the statements made in the foregoing paragraphs are true and correct to the best of my/our knowledge and belief, and that nothing material has been concealed therefrom. I/We declare that I am/we are competent to contract and am/are entitled to the rights and benefits relating to the aforesaid securities/units.

Place: _____

Date: _____

**Signature(s) of Claimant(s):**

X _____ X _____ X _____

**Signature(s) of Non-Claimant Legal Heir(s)**:**

X _____ X _____ X _____

** The signatures of non-claimant legal heir(s) are required only where the claimant has not furnished a Succession Certificate, Probate of Will (where applicable and available), Letter of Administration or Court Decree. Where any such court-issued document is furnished, this instrument shall operate as an affidavit of the named legal heir(s)/claimant(s) alone, and no NOC or signature from non-claimant legal heir(s) shall be required.

**Note: Where any person required to sign this document is unable to sign, he/she may affix his/her left thumb impression in lieu of signature.**

**ATTESTATION**

**Signed before me, by above signatories, identity/(ies) of whom has/have been verified.**

**At:** _____

**On (date):** _____

_____

Signature and Seal of Notary / Gazetted Officer

**Registration No. (if Notary):** _____